TITLE 8.—ALIENS AND NATIONALITY

Chap.		Sec.
1.	General provisions	1
2.	Elective franchise	31
3.	Civil rights	41
4.	Freedmen	61
5.	Alien ownership of land	71
6.	Immigration	100
7.	Exclusion of Chinese	261
8.	The cooly trade	331
9.	Miscellaneous provisions	351
10.	Alien registration	451
11.	Nationality code	501

CROSS REFERENCE

Enemy aliens, see Title 50, WAR.

Chapter 1.—GENERAL PROVISIONS

§§ 1–18. Repealed or transferred.

These sections, relating to citizenship, were affected by the Nationality Act of 1940, section 501 et seq. of this title. That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation, and, in addition to certain specific repeals thereby, all acts or parts of acts in conflict with its provisions were repealed by section 904 of this title. See the notes below for histories of the individual sections.

SECTION 1, relating to citizenship of persons born in the United States, was repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. It was from R. S. § 1992, which was revised from act Apr. 9, 1866, ch. 31, § 1, 14 Stat. 27. Present provisions are contained in section 601 (a) of this title.

SECTION 2, relating to citizenship of persons born in Territory of Oregon, is now set out in note under section 601 of this title. It was from R. S. § 1995, which was revised from act May 18, 1872, ch. 172, § 3, 17 Stat. 134.

SECTIONS 3–3c, relating to citizenship of Indians, are now set out in note under section 601 of this title. Section 3 was from acts Feb. 8, 1887, ch. 119, § 6, 24 Stat. 390; Mar. 3, 1901, ch. 868, 31 Stat. 1447; May 8, 1906, ch. 2348, 34 Stat. 182; Nov. 6, 1919, ch. 95, 41 Stat. 350; Mar. 3, 1921, ch. 120, § 3, 41 Stat. 1250; June 2, 1924, ch. 233, 43 Stat. 253; Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1173. Section 3a was from act June 19, 1930, ch. 544, 46 Stat. 787. Sections 3b and 3c were from act May 7, 1934, ch. 221, §§ 1, 2, respectively, 48 Stat. 667.

SECTION 4, relating to citizenship of Hawaiians, is now set out in note under section 601 of this title. It was from act Apr. 30, 1900, ch. 339, § 4, 31 Stat. 141.

SECTIONS 5 and 5a, relating to citizenship of Puerto Ricans, are now set out in note under section 602 of this title. They were from act Mar. 2, 1917, ch. 145, §§ 5, 5a, respectively, 39 Stat. 953, as amended Mar. 4, 1927, ch. 503, § 2, 44 Stat. 1418; May 17, 1932, ch. 190, 47 Stat. 158.

SECTION 5a–1, making a further extension of time for Puerto Ricans to become citizens in cases of misinformation regarding status, was repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1174. It was from act May 16, 1936, ch. 225, 52 Stat. 377. Present provisions are contained in sections 602 and 722 of this title.

SECTIONS 5b and 5c, relating to citizenship of inhabitants of the Virgin Islands, are now set out in note under section 601 of this title. They were from act Feb. 25, 1927, ch. 192, §§ 1, 3, respectively, 44 Stat. 1234, 1235, as amended May 17, 1932, ch. 190, 47 Stat. 158; June 28, 1932, ch. 283, § 5, 47 Stat. 336.

SECTIONS 5d–9a were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Sections 5d and 5e, relating to citizenship of persons born in Canal Zone or Panama, were from act Aug. 4, 1937, ch. 563, §§ 1, 2, respectively, 50 Stat. 558; present provisions are contained in section 603 of this title. Section 6, relating to citizenship of children born outside the United States, was from R. S. § 1993 (revised from acts Apr. 14, 1802, ch. 28, § 4, 2 Stat. 155; Feb. 10, 1855, ch. 71, § 1, 10 Stat. 604); act Mar. 2, 1907, ch. 2534, §§ 6, 7, 34 Stat. 1229, as amended May 24, 1934, ch. 344, § 1, 48 Stat. 797; present provisions are contained in sections 601 (c), 713, and 807 of this title. Section 7, relating to citizenship of children of persons naturalized under certain laws, was from R. S. § 2172, which was revised from act Apr. 14, 1802, ch. 28, § 4, 2 Stat. 155; present provisions are contained in section 714 of this title. Section 8, relating to citizenship, upon parent's naturalization, of children born abroad of alien parents, was from act Mar. 2, 1907, ch. 2534, § 5, 34 Stat. 1229, as amended May 24, 1934, ch. 344, § 2, 48 Stat. 797; present provisions are contained in section 714 of this title. Section 9, relating to citizenship of women citizens as affected by marriage, was from acts Sept. 22, 1922, ch. 411, § 3 (a), 42 Stat. 1022; July 3, 1930, ch. 835, § 1, 46 Stat. 854; Mar. 3, 1931, ch. 442, § 4 (a), 46 Stat. 1511; present provisions are contained in section 717 of this title. Section 9a, relating to repatriation of native-born women married to aliens prior to Sept. 22, 1922, was from act June 25, 1936, ch. 801, 49 Stat. 1917, as amended July 2, 1940, ch. 509, 54 Stat. 715; present provisions are contained in section 717 (b) of this title.

SECTION 10, relating to the effect of certain repeals on citizenship of women marrying citizens, is now set out in note under section 710 of this title. It was from act Sept. 22, 1922, ch. 411, § 6, 42 Stat. 1022.

SECTIONS 11 and 12, relating to forfeiture of citizenship for desertion from armed forces, are now set out in note under section 801 of this title. Section 11 was from R. S. § 1998 (revised from act Mar. 3, 1865, ch. 79, § 21, 13 Stat. 490) as amended by acts Aug. 22, 1912, ch. 336, § 1, 37 Stat. 356; Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 12 was from R. S. §§ 1996, 1997, which were revised from acts Mar. 3, 1865, ch. 79, § 21, 13 Stat. 490, and July 19, 1867, ch. 28, 15 Stat. 14, respectively.

SECTIONS 13 and 14, relating to the protection of citizens when abroad, are now sections 903a and 903b, respectively, of this title.

SECTION 15, relating to right of expatriation, is now section 800 of this title.

SECTIONS 16–18, relating to loss of citizenship, were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Section 16 was from act Mar. 2, 1907, ch. 2534, § 2, 34 Stat. 1228. Section 17 was from act Mar. 2, 1907, ch. 2534, §§ 2, 7, 34 Stat. 1228, 1229; present provisions are contained in sections 801 and 804 of this title. Section 17a was from act May 24, 1934, ch. 344, § 3, 48 Stat. 797; present provisions are contained in section 801 of this title. Section 18 was from acts June 29, 1906, ch. 3592, § 4 (12), 34 Stat. 596; May 9, 1918, ch. 69, § 1, 40 Stat. 545; June 21, 1930, ch. 559, 46 Stat. 791; present provisions are contained in sections 723, 741 (a), 742 (b), and 746 of this title.

REPEAL

Effective date and saving clauses, see sections 906, 904 note, and 747 of this title.

Chapter 2.—ELECTIVE FRANCHISE

Sec.
31. Race, color, or previous condition not to affect right to vote.
32. Interference with freedom of elections.

§ 31. Race, color, or previous condition not to affect right to vote.

All citizens of the United States who are otherwise qualified by law to vote at any election by the people in any State, Territory, district, county, city, parish, township, school district, municipality, or other territorial subdivision, shall be entitled and allowed to vote at all such elections, without distinction of race, color, or previous condition of servitude; any constitution, law, custom, usage, or regulation of any State or Territory, or by or under its authority, to the contrary notwithstanding. (R. S. § 2004.)

DERIVATION

Act May 31, 1870, ch. 114, § 1, 16 Stat. 140.

§ 32. Interference with freedom of elections.

No officer of the Army or Navy of the United States shall prescribe or fix, or attempt to prescribe or fix, by proclamation, order, or otherwise, the qualifications of voters in any State, or in any manner interfere with the freedom of any election in any State, or with the exercise of the free right of suffrage in any State. (R. S. § 2003.)

DERIVATION

Act Feb. 25, 1865, ch. 52, § 1, 13 Stat. 437.

Chapter 3.—CIVIL RIGHTS

Sec.
41. Equal rights under the law.
42. Property rights of citizens.
43. Civil action for deprivation of rights.
44. Exclusion of jurors on account of race or color.
45. Same; prosecution of violations.
46. Same; review of proceedings.
47. Conspiracy to interfere with civil rights.
(1) Preventing officer from performing duties.
(2) Obstructing justice; intimidating party, witness, or juror.
(3) Depriving persons of rights or privileges.
48. Same; action for neglect to prevent.
49. Prosecution of violation of certain laws.
50. Commissioners; appointment of persons to execute warrants.
51. Marshal to obey precepts; refusing to receive or execute process.
52. Fees; certain officers.
53. Same; persons appointed to execute process.
54. Speedy trial.
55. Aid of military and naval forces.
56. Peonage abolished.

§ 41. Equal rights under the law.

All persons within the jurisdiction of the United States shall have the same right in every State and Territory to make and enforce contracts, to sue, be parties, give evidence, and to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens, and shall be subject to like punishment, pains, penalties, taxes, licenses, and exactions of every kind, and to no other. (R. S. § 1977.)

DERIVATION

Act May 31, 1870, ch. 114, § 16, 16 Stat. 144.

§ 42. Property rights of citizens.

All citizens of the United States shall have the same right, in every State and Territory, as is enjoyed by white citizens thereof to inherit, purchase, lease, sell, hold, and convey real and personal property. (R. S. § 1978.)

DERIVATION

Act Apr. 9, 1866, ch. 31, § 1, 14 Stat. 27.

§ 43. Civil action for deprivation of rights.

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. (R. S. § 1979.)

DERIVATION

Act Apr. 20, 1871, ch. 22, § 1, 17 Stat. 13.

§ 44. Exclusion of jurors on account of race or color.

No citizen possessing all other qualifications which are or may be prescribed by law shall be disqualified for service as grand or petit juror in any court of the United States, or of any State on account of race, color, or previous condition of servitude; and any officer or other person charged with any duty in the selection or summoning of jurors who shall exclude or fail to summon any citizen for the cause aforesaid shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not more than $5,000. (Mar. 1, 1875, ch. 114, § 4, 18 Stat. 336.)

§ 45. Same; prosecution of violations.

The district courts of the United States shall have, exclusively of the courts of the several States, cognizance of all crimes and offenses against and violations of, the provisions of section 44 of this title. The district attorneys, marshals, and deputy marshals of the United States, and United States commissioners with powers of arresting and imprisoning or bailing offenders against the laws of the United States, are hereby specially authorized and required to institute proceedings against every person who shall violate the provisions of section 44 of this title, and cause him to be arrested and imprisoned or bailed, as the case may be, for trial before such court of the United States, or Territorial court, as by law has cognizance of the offense, and such district attorneys shall cause such proceedings to be prosecuted to their termination as in other cases. Nothing contained in this section shall be construed to deny or defeat any right of civil action accruing to any person, whether by reason of this act or otherwise; and any district attorney who shall willfully fail to institute and prosecute the proceedings herein required, shall, for every such offense, forfeit and pay the sum of $500 to the person aggrieved thereby, to be recovered by an action of debt, with full costs, and shall, on conviction thereof, be deemed guilty of a misdemeanor, and be fined not less than $1,000 nor more than $5,000. Judgment for the penalty in favor of the party aggrieved against any such